

IN THE SUPREME COURT OF INDIA

Civil Appeal No. 5120/2024

Date of Decision: 10-06-2024

Amul Dairy Products ... Appellant

VERSUS

Anand Milk Corp ... Respondent

FACTS OF THE CASE:

1. Passing off action under Trade Marks Act, 1999 for deceptively similar mark.

ISSUES:

1. Likelihood of consumer confusion in well-known marks.

REASONING & DECISION:

Well-known trademarks are entitled to protection across product categories.

RATIO DECIDENDI:

Deceptive similarity creates actionable passing off regardless of direct competition.

DECISION:

Injunction against respondent confirmed.